Fort Bend County District Court

Cause No. 2024-CV-0030

Ryan Miller, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	1-25-25
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

For futrher answer, and without assuming any burden of proof that it would not otherwise bear, Defendant asserts the following affirmative defenses. First, Plaintiff's own negligence proximately caused or contributed to the incident, including failure to keep a proper lookout and failure to yield the right-of-way before changing lanes. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff may be barred from recovery if that percentage exceeds fifty percent. Second, the incident was caused in whole or in part by the acts or omissions of a third party or parties over whom Defendant had no control, and Defendant requests that the trier of fact designate such persons as responsible third parties. Third, Plaintiff failed to mitigate damages, and any recovery must be reduced to the extent Plaintiff failed to exercise reasonable care to minimize the claimed losses.